

(4) Except in the case of an assessor appointed by the committee itself under sub-paragraph (2) above, an assessor may be appointed under this paragraph either generally or for any particular proceedings or class of proceedings, and shall hold and vacate office in accordance with the terms of the instrument under which he is appointed.

2ND SCH.

(5) The relevant board may pay to an assessor appointed under this paragraph remuneration at such rates as may be determined by the Council with the consent of the Lord Chancellor.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Judicial Committee Act, 1833	3 & 4 Will. 4. c. 41.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Attendance of Witnesses Act, 1854	17 & 18 Vict. c. 34.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.

CHAPTER 67

An Act to provide for the admission of representatives of the press and other members of the public to the meetings of certain bodies exercising public functions.
[27th October, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) below, any meeting of a local authority or other body exercising public functions, being an authority or other body to which this Act applies, shall be open to the public.

Admission of public to meetings of local authorities and other bodies.

(2) A body may, by resolution, exclude the public from a meeting (whether during the whole or part of the proceedings) whenever publicity would be prejudicial to the public interest by reason of the confidential nature of the business to be transacted or for other special reasons stated in the resolution and arising from the nature of that business or of the proceedings; and where such a resolution is passed, this Act shall not require the meeting to be open to the public during proceedings to which the resolution applies.

(3) A body may under subsection (2) above treat the need to receive or consider recommendations or advice from sources other than members, committees or sub-committees of the body as a special reason why publicity would be prejudicial to the public interest, without regard to the subject or purport of the recommendations or advice; but the making by this subsection of express provision for that case shall not be taken to restrict the generality of subsection (2) above in relation to other cases (including in particular cases where the report of a committee or sub-committee of the body is of a confidential nature).

(4) Where a meeting of a body is required by this Act to be open to the public during the proceedings or any part of them, the following provisions shall apply, that is to say,—

- (a) public notice of the time and place of the meeting shall be given by posting it at the offices of the body (or, if the body has no offices, then in some central and conspicuous place in the area with which it is concerned) three clear days at least before the meeting or, if the meeting is convened at shorter notice, then at the time it is convened;
- (b) there shall, on request and on payment of postage or other necessary charge for transmission, be supplied for the benefit of any newspaper a copy of the agenda for the meeting as supplied to members of the body (but excluding, if thought fit, any item during which the meeting is likely not to be open to the public), together with such further statements or particulars, if any, as are necessary to indicate the nature of the items included or, if thought fit in the case of any item, with copies of any reports or other documents supplied to members of the body in connection with the item;
- (c) while the meeting is open to the public, the body shall not have power to exclude members of the public from the meeting and duly accredited representatives of newspapers attending for the purpose of reporting the proceedings for those newspapers shall, so far as practicable, be afforded reasonable facilities for taking their report and, unless the meeting is held in premises not belonging to the body or not on the telephone, for telephoning the report at their own expense.

(5) Where a meeting of a body is required by this Act to be open to the public during the proceedings or any part of them, and there is supplied to a member of the public attending the meeting, or in pursuance of paragraph (b) of subsection (4) above there is supplied for the benefit of a newspaper, any such copy of the agenda as is mentioned in that paragraph, with or without further statements or particulars for the purpose of indicating the nature of any item included in the agenda, the publication

thereby of any defamatory matter contained in the agenda or in the further statements or particulars shall be privileged, unless the publication is proved to be made with malice.

(6) When a body to which this Act applies resolves itself into committee, the proceedings in committee shall for the purposes of this Act be treated as forming part of the proceedings of the body at the meeting.

(7) Any reference in this section to a newspaper shall apply also to a news agency which systematically carries on the business of selling and supplying reports or information to newspapers, and to any organisation which is systematically engaged in collecting news for sound or television broadcasts; but nothing in this section shall require a body to permit the taking of photographs of any proceedings, or the use of any means to enable persons not present to see or hear any proceedings (whether at the time or later), or the making of any oral report on any proceedings as they take place.

(8) The provisions of this section shall be without prejudice to any power of exclusion to suppress or prevent disorderly conduct or other misbehaviour at a meeting.

2.—(1) This Act shall apply to the bodies specified in the Schedule to this Act, and to such bodies as may for the time being be added to that Schedule by order made under subsection (3) below; and where this Act applies to a body, the foregoing section shall apply in relation to any committee of the body whose members consist of or include all members of the body, as that section applies in relation to the body itself, but so that for the purposes of paragraph (c) of subsection (4) of that section premises belonging to the body shall be treated as belonging to the committee.

Application of Act, and consequential provisions.

(2) In the Schedule to the Defamation Act, 1952 (by virtue of which, among other things, newspaper reports of all proceedings at meetings of local authorities and their committees are privileged unless admission to the meeting is denied to representatives of newspapers and other members of the public), in the definition of "local authority" in paragraph 13 for the reference to the Local Authorities (Admission of the Press to Meetings) Act, 1908, there shall be substituted a reference to this Act.

(3) Any body established by or under any Act may be added to the Schedule to this Act, and any body so added may be removed from the Schedule, by order of the appropriate Minister made by statutory instrument, but a statutory instrument made by a Minister under this section shall be of no effect unless it is approved by resolution of each House of Parliament; and for this purpose the appropriate Minister is, in the case of any body, the Minister of the Crown in charge of the Government department concerned or primarily concerned with the matters

dealt with by that body, but an order made under this subsection by any Minister of the Crown shall be effective, whether or not he is the appropriate Minister.

Short title,
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3.—(1) This Act may be cited as the Public Bodies (Admission to Meetings) Act, 1960.

(2) The Local Authorities (Admission of the Press to Meetings) Act, 1908, sub-paragraph (4) of paragraph 1 of Part IV of the Third Schedule to the Local Government Act, 1933, and section eighty-four of the Education (Scotland) Act, 1946, are hereby repealed.

(3) This Act shall not extend to Northern Ireland.

(4) This Act shall come into force on the first day of June, nineteen hundred and sixty-one.

SCHEDULE

BODIES TO WHICH THIS ACT APPLIES

1. The bodies to which in England and Wales this Act applies are—

- (a) local authorities within the meaning of the Local Government Act, 1933, or the London Government Act, 1939, the Common Council of the City of London and the Council of the Isles of Scilly, and joint boards or joint committees constituted to discharge functions of any two or more of those bodies;
- (b) the parish meetings of rural parishes;
- (c) the Metropolitan Water Board, and joint boards and joint committees constituted by or under any Act for the purposes of water supply, and consisting of or including representatives of local authorities within the meaning of the Local Government Act, 1933;
- (d) education committees (including joint education committees) constituted under Part II, and divisional executives constituted under Part III of the First Schedule to the Education Act, 1944;
- (e) bodies constituted in accordance with regulations made under subsection (4) of section twenty-two of the National Health Service Act, 1946;
- (f) regional hospital boards constituted under section eleven of the said Act of 1946;
- (g) executive councils constituted under section thirty-one of the said Act of 1946, but only so far as regards the exercise of their executive functions;
- (h) bodies not mentioned above but having, within the meaning of the Public Works Loans Act, 1875, power to levy a rate (other than police authorities).

2. The bodies to which in Scotland this Act applies are—

- (a) local authorities within the meaning of the Local Government (Scotland) Act, 1947, and joint boards or joint committees (other than joint police committees constituted under the Police (Scotland) Act, 1956) constituted to discharge functions of any two or more such local authorities;
- (b) local water authorities within the meaning of the Water (Scotland) Act, 1946;
- (c) education committees constituted as provided in section one hundred and eight of the Local Government (Scotland) Act, 1947;
- (d) regional hospital boards constituted under section eleven of the National Health Service (Scotland) Act, 1947;
- (e) executive councils constituted under section thirty-two of the said Act of 1947, but only so far as regards the exercise of their executive functions;
- (f) bodies not mentioned in the foregoing sub-paragraphs but having, within the meaning of the Public Works Loans Act, 1875, power to levy a rate.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Works Loans Act, 1875	38 & 39 Vict. c. 89.
Local Authorities (Admission of the Press to Meetings) Act, 1908.	8 Edw. 7. c. 43.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Water (Scotland) Act, 1946	9 & 10 Geo. 6. c. 42.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Criminal Justice (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 94.
Defamation Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 66.
Police (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 26.